

****27.10.2023****

****Sanction for GDPR Violation****

The National Authority for the Supervision of Personal Data Processing completed an investigation in October 2023 at the Owners' Association of Block A1 located at Mureșului Street, no. 2A, Hunedoara Municipality, Hunedoara County, and found violations of the provisions of:

art. 58 para. (1) of Regulation (EU) 2016/679;

art. 5 para. (1) letter a) and art. 6 of Regulation (EU) 2016/679.

The operator was sanctioned with a fine of 2487.25 lei for failing to comply with the measures ordered by the Authority through a report of findings/sanction to respond to the Authority's requests and was warned for illegally disclosing the names and surnames of the owners by displaying them on maintenance lists, without the consent of the data subjects for this processing and without the existence of any other situation in which consent is not required.

The sanction was applied following a complaint regarding a possible violation of legal provisions concerning data processing by the Owners' Association of Block A1, as a result of the unlawful disclosure of the names and surnames of the owners by displaying them on maintenance lists.

During the investigation, it was found that the operator did not comply with the legal provisions regarding the processing of personal data, unlawfully disclosing the names and surnames of the owners by displaying them on maintenance lists, without the data subjects having expressed their consent for this processing and without the existence of any other situation in which consent is not required, in violation of the provisions of art. 5 para. (1) letter a) and art. 6 of Regulation (EU) 2016/679.

Additionally, the National Authority for the Supervision of Personal Data Processing also applied corrective measures, ordering the operator to take the necessary steps to ensure that, in the future, the processing operations comply with the provisions of the GDPR, specifically to avoid processing personal data without the consent of the data subjects and without the existence of any other situation in which consent is not required, and to avoid disclosing the data of the data subjects outside the cases expressly provided by law.

****Legal and Communication Department****

****N.A.S.P.D.C.P.****